

|    |                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|----|----------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                            | <p>THIS RULING IS FINAL.</p> <p>Moving Party shall provide notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 2. | <p><b>Delgadillo vs. General Motors, LLC</b></p> <p><b>25-01481736</b></p> | <p><b>Motion to Compel Deposition (Oral or Written)</b></p> <p>Defendant General Motors LLC’s Motion to Compel Plaintiff’s Deposition and the Imposition of Sanctions is GRANTED. (Code Civ. Proc., § 871.26.)</p> <p>Code of Civil Procedure § 871.26 provides that: “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents,” including “[t]he plaintiff.” (Code Civ. Proc. § 871.26, subd. (c).)</p> <p>Here, Plaintiff did not appear for his deposition within in the 120 days, and did not provide alternative dates for his deposition, as requested by GM.</p> <p>Plaintiff argues GM is barred from compelling his deposition because it did not complete the deposition within 120 days of the filing of its demurrer. But this argument is specious. The reason the deposition was not completed is because Plaintiff did not appear at his deposition or provide alternative dates.</p> <p>Although Section 871.26 is silent on any deadline or procedure in which to file a motion to compel compliance, the court has authority to hear this matter. (See <i>Chavez v. Superior Court</i> (2024) 99 Cal.App.5th 165, 180 [gaps in statutes due to legislative silence “may be filled by courts through the exercise of their inherent authority in the absence of a clear legislative intent to the contrary that goes beyond the silence itself”].) To force GM to re-notice Plaintiff’s deposition and again attempt to schedule his deposition would negate the reason behind the enactment of Section 871.26 – to streamline and expedite the lemon law litigation process.</p> <p><b>Accordingly, the motion is GRANTED. Plaintiff is ordered to appear at his deposition by July 31, 2026.</b></p> <p>Further, GM’s request for sanctions against Plaintiff’s counsel is GRANTED in the amount of \$1,500 for failure to comply with CCP § 871.26(c).) Plaintiff has failed to demonstrate “good cause” for his non-compliance.</p> <p>Moving Party to give notice of this ruling.</p> |